

The Court also finds *Business and Professions Code* section 9793 does not bar Plaintiff's claims. The Aircraft Repair Lien Law (*Bus. & Prof. Code §§ 9790 et. seq.* ("Lien Law")) regulate repairs and services provided to owners of noncommercial aircraft and authorizes a nonpossessory lien in favor of aircraft repairpersons, as long as their services are performed in accordance with mandatory statutory requirements. (*13 Witkin, Summary of Cal. Law, 11th edition | Personal Property* (May 2026 update) § 253; *4 Witkin, Summary of Cal. Law, 11th edition | Sales* (May 2026 update) § 348.) Failure to comply with *Business and Professions Code* § 9793 *et. seq.* precludes a repairperson from obtaining a lien on an aircraft for compensation for services rendered. (*Bus. & Prof. Code* § 9798.1, *subd. (h).*) There is nothing in the Lien Law that precludes a repairperson from pursuing a civil action for damages arising out of the owner's failure to pay for services. Defendant fails to cite to any authority – statutory or case law – that supports its position that the Lien Law bars such claims. The demurrer is thus **OVERRULED** as to this cause of action.

2nd and 4th causes of action (open book account and quantum meruit): Defendant argues *Business and Professions Code* § 9793 bars these claims. This argument fails for the reasons set forth above. The demurrer is thus **OVERRULED** as to these causes of action.

3rd cause of action (account stated): The FAC states sufficient facts to state a cause of action, including mutual assent. (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491; FAC ¶¶ 5, 6, 14, 15.) The FAC attaches a copy of the work order and invoice containing line items of services performed, and states: "All line items were approved either in writing or verbally by the principal of the Defendant, Dr. Patrick T. Yoshikane, DDS." (FAC ¶ 5.) This is sufficient to show assent. The demurrer is thus **OVERRULED** as to this cause of action.

Motion to Strike

A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded, such as unauthorized attorney fee claims. (*Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) ¶¶ 7:182, 7:183; *Code of Civ. Proc.* § 436, *subd. (a).*) As pointed out by Defendant, there are no facts in the FAC establishing any contractual or statutory basis for the recovery of attorney fees. The motion to strike is therefore **GRANTED** with 10 days' leave to amend.

Counsel for Defendant shall give notice of this ruling.

9.	Casco v. Bank of America, N.A. 23-1335287	(Continued)
10.	Andresen v. Watermeier 25-1507923	(Continued)
11.		
12.		